

Opinion of SOTOMAYOR, J.

or at least innocent explanations that are inherently or circumstantially implausible.¹¹ These cases suggest that innocent explanations—even uncontradicted ones—do not have any automatic, probable-cause-vitiating effect.

For these reasons, a reasonable officer, looking at the entire legal landscape at the time of the arrests, could have interpreted the law as permitting the arrests here. There was no controlling case holding that a bona fide belief of a right to enter defeats probable cause, that officers cannot infer a suspect’s guilty state of mind based on his conduct alone, or that officers must accept a suspect’s innocent explanation at face value. Indeed, several precedents suggested the opposite. The officers were thus entitled to summary judgment based on qualified immunity.

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The judgment of the D. C. Circuit is therefore reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE SOTOMAYOR, concurring in part and concurring in the judgment.

I agree with the majority that the officers here are entitled to qualified immunity and, for that reason alone, I concur in

v. Kent, 867 F. 2d 259, 263 (CA6 1988) (“A policeman . . . is under no obligation to give any credence to a suspect’s story . . .”).

¹¹ See, e. g., *Ramirez v. Buena Park*, 560 F. 3d 1012, 1024 (CA9 2009) (holding that “innocent explanations for [a suspect’s] odd behavior cannot eliminate the suspicious facts” and that “law enforcement officers do not have to rule out the possibility of innocent behavior” (internal quotation marks omitted)); *United States v. Edwards*, 632 F. 3d 633, 640 (CA10 2001) (holding that probable cause existed where the suspect “offered only implausible, inconsistent explanations of how he came into possession of the money”); *Bradway v. Gonzales*, 26 F. 3d 313, 321 (CA2 1994) (holding that “[a] reasonable officer who found the [stolen items], and who heard [the suspect’s] implausible explanation for possessing them, would have believed that probable cause existed”).